

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2024PRCE020416: IN THE MATTER OF KATHLEEN ANN WILSON

06/30/2026 in Department J6

Amended First Account and Report

The Court's docket shows that the letters issued on 6/14/24 have been voided. Discuss and rectify.

The Court notes the following issues with the amended first account and report:

- Annuity distributions (total \$18,113.41) are reported both in Schedule 2 as receipts and in Schedule 5 as disbursements. Explanation?
- The estate is paying \$1,358.02 to \$1,403.86 per month to Jackson National Life for "GMDB Charge." A GMDB charge appears to for "guaranteed minimum death benefit" to beneficiaries. How much is the guaranteed minimum death benefit? Is this a reasonable and necessary expense?
- From 5/17/24 through 4/17/25, there are monthly charges of \$150 for ZAI Health, "monthly wellness visit." The conservatee was living at the Regency Palms for most of this time. What are the wellness visits for and why are they needed?
- Schedule 9 is denoted as "changes in asset," but it appears to include items which are merely disbursements. Hand and Hamilton, Fiduciary Accounting Handbook (2024) § 12.12, p. 348, states: "Fiduciaries must distinguish between those purchases that are treated as disbursements and those that are better described as an exchange of one type of property for another. Disbursements may be thought of as purchases that deplete the estate accounted for. Disbursements may include the purchase of sundries such as office supplies, stamps, packing material, paint, and light bulbs. By contrast, the purchase of stocks, bonds, annuities, certificates of deposit, real property, or durable goods such as vehicles, represent the exchange of one type of asset – money – for another." The Handbook states that it is the latter type of exchanges that must be included in the Changes in Form of Assets schedule. Conservators are ordered to submit a proper Changes in Form of Assets schedule.
- According to the CI's Report filed on 7/24/25, the conservator William Wilson reported that the conservatee received a large settlement after one of her cousins passed away. The accounting does not show any additional property received. Explanation?

Further, the account states that the conservators sold the conservatee's home located at 1208 Via Viento Suave, San Marco, CA 92078, on 7/19/24 for

\$635,000. Sales of real property of the estate are subject to the authorization, confirmation, or direction of the court. (Prob. Code, § 2540, subd. (a).) A report of sale and confirmation of sale is also needed. (Prob. Code, §§ 2540, 2541, 2542, 2543.) What authority did the conservators have to sell the house? Was the property the conservatee's former personal residence? The Court notes that the conservators and their counsel do not discuss the propriety of the sale of the real property at all.

No actual financial statements for this estate are provided with the accounting. Re the documents filed on 4/17/26, Exh. A is represented to be statements for US Bank, Elite Money Market #8928. Exh. A actually contains Citizens Business Bank statements for conservatee Robert Wilber Jr., with Laura Viets as the conservator. The Court notes that this appears to be a breach of privacy and/or duty of confidentiality by counsel Maria Capritto vis-à-vis Ms. Viets and/or Mr. Wilber.

Exhibit B is represented to be US Bank, Platinum Checking #3041 statements. Exh. B contains the care facility invoices for conservatee Robert Wilber Jr.

Exhibits C-G are represented to be financial statements for the estate's other accounts. No Exhibits C-G are attached.

No Residential Facility Statements are provided for this conservatee.

The conservators will be ordered to serve and file a verified supplement that addresses all of the foregoing issues.